

****Telemarketing, Privacy Authority: “We are the first line of defense. Select only necessary cookies”****
Interview with Agostino Ghiglia, member of the Privacy Authority for the protection of personal data
(by Maria Lucia Panucci, Business24TV, July 6, 2024)

From codes of conduct in the workplace to data processing in the corporate sector, to the defense against rampant telemarketing and the importance of digital civic education in schools. We discussed these topics with Agostino Ghiglia, a member of the Board of the Privacy Authority for the protection of personal data, interviewed by our editorial director Matteo Vallero in the Roman studios of Business24.

The General Data Protection Regulation (GDPR) of the European Union has influenced the corporate landscape since its entry into force on May 25, 2018. Designed to strengthen data protection and privacy rights for individuals within the EU, this legislation has reshaped how companies manage and process personal data. According to a report by NordLayer, a company specializing in network security, fines totaling €4.5 billion have been imposed on companies for GDPR violations in the last six years. Among the most fined countries is Italy. How do you assess this data and how can we reverse the trend?

“First of all, every European regulation, which I remind you has constitutional value, has a period of adaptation. Like all laws, they must first be integrated into reality, then applied, but during the application itself, there is a need for a period of understanding for both citizens and businesses. The GDPR is a simple regulation in its complexity because it is transversal to all our daily activities, which are increasingly immersed in the digital age. Before 2018, there was privacy, meaning the third signature on the form. Today, it has transformed into the protection of personal data, which in the digital age equates to our physical person, our deepest personality, our feelings, our spiritual, political, and cultural inclinations. With this premise, the numbers must be viewed in their complexity. It is true that we are one of the most fined countries, but it is also true that we are among the largest nations in the European Union. We also boast one of the most important authorities with offices particularly attentive to punishing violations concerning personal data. The proceedings that lead to sanctions are long and complex. There is still much work to be done to implement increasingly deterrent actions, to make people understand the seriousness of the offense committed, to build a ‘privacy by design,’ which means adapting business models so that privacy is seen as a competitive advantage rather than a disadvantage, and data protection is viewed as an investment rather than an expense. Essentially, it is necessary to balance: on one hand, we need to promote this new mentality, and on the other hand, where necessary, impose sanctions.”

Staying in Europe, a category that is often in the spotlight for discriminatory issues is that of riders. But the Authority has also intervened in this field with a decision targeting algorithms. Can you tell me more about it?

“There were two investigations that involved us a couple of years ago, very complex because the figure of the rider was new, so much so that even today there are no national collective agreements for this category except for one. We must consider the worker's rights, the right not to be discriminated against if they refuse a call, but it is also necessary to monitor the service and the timing of the service itself as it is proposed and as the customer expects it.”

Turning to work in Italy, finally no more uncomfortable questions during interviews. Can you tell me about the Code proposed by Assolavoro and approved by the Privacy Authority? What are the key points? What risks do companies face if they transgress?

“Codes of conduct are binding for those who subscribe to them, but they are not binding for everyone. Regarding the European regulation for the protection of personal data, the principle of accountability applies, meaning responsibility: there are rules to be respected, and the company is required to design its business model in such a way as to process personal data lawfully and transparently. Therefore, there are companies that adhere to the Code of conduct and companies that believe that through accountability they have created a business model that sufficiently protects citizens. That said, the Code of conduct proposed by Assolavoro has established three important points: the first concerns the type of data for which individuals are selected for a job interview. Private life cannot be a criterion for

evaluating an interview unless it influences the activity they are called to perform; the second point is the guarantee that automated processes always involve human intervention, thus not leaving any decision-making power to the machine; the third point is the possibility of using data from previous work provided that this information is useful and relevant to the activity for which the interview is being conducted. The Authority has provided guidelines but is not a labor consultant. It clearly states that if a company processes personal data, it must have a data processing officer, known as RPD, a register of processing activities, and if someone were to report an offense, the Authority intervenes with an investigation.”

How can companies, and how long can they retain personal data generated and collected automatically by email transmission and sorting protocols?

“Recently, the Authority adopted a...

****Provision on so-called meta-data that are not the body of emails but the email address, attached files, etc.**** In this case, the Authority can provide guidelines, defining a basic timeframe of 20-21 days, provided that the individual data controller may decide to diversify these data retention times without ever exceeding them too much.

****Telemarketing:**** a rather tricky subject since we are constantly bombarded on the phone with promotions from call centers. Here too, the Authority has intervened massively... How can telemarketing be conducted while respecting the GDPR and privacy regulations? And, from the user's side, how can one concretely defend against inappropriate intrusions?

“Of course, telemarketing can be done; it is a lawful activity, but it is subject to strict principles of legality. For example, one must consensually obtain the user's address, and one must not abuse it or take shortcuts. The problem is that very often the activity is carried out improperly. In two years, the Authority has imposed fines of over 100 million euros on various utilities that handled data somewhat too superficially, obtained it even more superficially, and began to harass citizens at any hour of the day or night. With the Code approved by the Authority, we believe that the situation will improve. There is also another tool, namely the Register of Oppositions, whereby the user registers their number and withdraws any type of consent. In theory, therefore, they should no longer receive unwanted calls; in theory, because the citizen, it must be said, must learn to defend themselves, meaning they must learn that cookies should not be accepted compulsively. Unfortunately, human beings are impatient; they are dominated by the anxiety of reading the news immediately and are therefore inclined to accept cookies too hastily, without having done any checks, without having read what they are accepting, thus risking being prey to wild telemarketing. Behind that acceptance lies the possibility that our data may be made available to dozens or hundreds of private entities who, from that moment on, since it effectively equates to new consent, will have the legitimacy to call us. Therefore, one must have a bit more patience and select only the necessary cookies to use the service. We are our first line of defense.”

****Lights and shadows on artificial intelligence:**** it is being talked about more and more often, and more and more companies are using it. How is it possible to support innovation while still protecting personal data? What risks should be avoided?

“We have a duty to protect our data in the technological era; it becomes the battle of battles. First, let's clarify that we are mainly talking about generative artificial intelligence. The term AI was coined in 1954. Since then, we have never thought that calculators or computers were already forms of artificial intelligence. Now there has been a boom in generative artificial intelligence with ChatGPT, a tool that has led us to believe it has become indispensable for our evolutionary history. The future will judge. However, it is essential in this context to protect our personal data because, as I mentioned at the beginning, we now live two lives: the real one and the digital one. I “nurture” my digital twin online, in the sense that I continuously put personal, intimate information on the Internet, and therefore it becomes particularly important to take care of it, just as we do with our physical person.”

Ghiglia concludes that the digital era is a reality in which we are already immersed, and for this reason, he believes that digital civic education is fundamental, making it a subject of teaching from the first

school cycle, to make new generations understand that the Internet is not just leisure or escape, but that we are inside it with our identity.